



CHAPTER xci.

An Act to empower the mayor aldermen and burgesses of the borough of Tunbridge Wells to erect a town hall and other buildings to acquire lands for those purposes and for the purposes of their water undertaking and the protection of their water supply from contamination to make further provision with regard to the supply of water by the Corporation and for other purposes. A.D. 1929.
[10th May 1929.]

WHEREAS the borough of Tunbridge Wells in the county of Kent (in this Act called "the borough") is under the government of the mayor aldermen and burgesses thereof (in this Act called "the Corporation") who acting by the council of the borough are the council of the urban sanitary district which comprises the borough :

And whereas by the Tunbridge Wells Water Act 1865 the Tunbridge Wells Improvement Commissioners (the predecessors of the Corporation) were authorised to supply water to the town of Tunbridge Wells and places adjacent thereto and for that purpose to make and maintain waterworks and to acquire the waterworks and water rights of two companies in that Act more particularly mentioned and described :

And whereas further powers in relation to the supply of water have been conferred upon the Corporation by

A.D. 1929. the Tunbridge Wells Improvement Act 1890 and other enactments :
—

And whereas it is expedient to empower the Corporation to acquire for the purposes of their water undertaking the lands in the parish of Speldhurst which are referred to in this Act :

And whereas it is expedient for the purpose of preventing contamination of and ensuring the continued purity of the water supplied by the Corporation that the Corporation be empowered to purchase the lands in the parishes of Brenchley Pembury and Tonbridge Rural which are referred to in this Act :

And whereas it is expedient to make further provisions in regard to the water undertaking of the Corporation and the supply of water by them :

And whereas the existing offices and premises of the Corporation are inconvenient and are insufficient for the requirements of the borough and it is expedient to empower the Corporation to erect a town hall and other buildings and for that purpose to acquire the lands in the borough which are referred to in this Act :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly deposited with the clerk of the peace for the county of Kent and are hereinafter respectively referred to as the deposited plans and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this

present Parliament assembled and by the authority of A.D. 1929.
the same as follows (that is to say) :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Tunbridge Wells Short title.
Corporation Act 1929.

2. This Act is divided into Parts as follows :—

Division of
Act into
Parts.

Part I.—Preliminary.

Part II.—Lands.

Part III.—Waterworks.

Part IV.—Supply of water.

Part V.—Town hall and baths.

Part VI.—Financial and miscellaneous pro-
visions.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :—

Incorpora-
tion of Acts.

(1) The Lands Clauses Acts with the following
exception and modification :—

(a) Section 127 of the Lands Clauses Con-
solidation Act 1845 (relating to the sale of
superfluous lands) is not incorporated with
this Act;

(b) The bond required by section 85 of
the Lands Clauses Consolidation Act 1845
shall be under the corporate seal of the Cor-
poration and shall be sufficient without the
addition of the sureties mentioned in that
section;

(2) The Waterworks Clauses Act 1847 except—

(a) the words “ with the consent in writing
“ of the owner or reputed owner of any such
“ house or of the agent of such owner ” in
section 44;

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(b) sections 75 to 82 (with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit); and

(c) section 83 (with respect to the yearly receipts and expenditure of the undertakers); and

(3) The Waterworks Clauses Act 1863.

Interpreta-
tion.

4.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts 1875 to 1925 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“The borough” means the borough of Tunbridge Wells;

“The Corporation” means the mayor aldermen and burgesses of the borough acting by the council;

“The council” means the council of the borough;

“The mayor” “the town clerk” “the treasurer” and “the chief financial officer” mean respectively the mayor the town clerk and the treasurer of the borough and the chief officer charged with keeping the accounts of the Corporation and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“The general rate fund” and “the general rate” mean respectively the general rate fund and the general rate of the borough;

“The Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 and by this Act;

“The tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this

Act is referred in pursuance of the Acquisition
of Land (Assessment of Compensation) Act
1919;

A.D. 1929.
—

“The water limits” means the limits within which
the Corporation are for the time being autho-
rised to supply water;

“The Minister” means the Minister of Health;

“Statutory security” means any security in which
trustees are for the time being by or under
any Act of Parliament passed or to be passed
authorised to invest trust money and any
mortgage bond debenture debenture stock stock
or other security authorised by or under any
Act of Parliament passed or to be passed of any
county council or municipal corporation or
other local authority as defined by section 34
(Definitions) of the Local Loans Act 1875 but
does not include annuities rentcharges or securi-
ties transferable by delivery or any securities
of the Corporation;

“Statutory borrowing power” means any power
whether or not coupled with a duty of borrowing
or continuing on loan or re-borrowing money or
of redeeming or paying off or creating or
continuing payment of or in respect of any
annuity rentcharge rent or other security repre-
senting or granted in lieu of consideration
money for the time being existing under any
Act of Parliament public or local passed or to
be passed or under any Provisional Order
confirmed by Act of Parliament passed or to
be passed or under any order or sanction of
any Government department made or given
or to be made or given by authority of any
Act of Parliament passed or to be passed;

“Revenues of the Corporation” includes the
revenues of the Corporation from time to time
arising from any land undertakings or other
property for the time being of the Corporation
and the rates or contributions leviable by or
on the order or precept of the Corporation;

“Telegraphic line” has the same meaning as in the
Telegraph Act 1878;

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“The Act of 1865” “the Act of 1890” and “the Order of 1923” mean respectively the Tunbridge Wells Water Act 1865 the Tunbridge Wells Improvement Act 1890 and the Tunbridge Wells Order 1923.

PART II.

LANDS.

Power to
acquire
lands.

5. Subject to the provisions of this Act the Corporation may (in so far as they are not already possessed of the same) enter on take and use for the purposes hereinafter mentioned the lands hereinafter referred to (namely):—

- (a) For and in connection with their water undertaking the lands in the parish of Speldhurst which are delineated on the deposited plans and described in the deposited book of reference;
- (b) For the purposes of protecting their waters and waterworks against pollution fouling contamination or injury and for other purposes of their water undertaking the lands in the parishes of Brenchley Pembury and Tonbridge Rural which are delineated on the said plans and described in the said book of reference;
- (c) For the erection of a town hall and of buildings and premises for the purpose of municipal offices or of carrying on the business of the Corporation the lands in the borough which are delineated on the said plans and described in the said book of reference:

Provided that the Corporation shall not acquire otherwise than by agreement any interest of Osmond Elim d'Avigdor Goldsmid in the lands which are numbered 153 to 175 inclusive on the deposited plans relating to the parish of Tonbridge Rural and the provisions of the section of this Act of which the marginal note is “Further powers for the acquisition of land” shall not apply to such acquisition of the said lands numbered 153 to 175 inclusive.

For protec-
tion of
Mrs. E. A.

6. Notwithstanding anything contained in this Act or shown upon the deposited plans the following provisions for the protection of Emily Alice Stather Hunt and

her successors in title as owners in fee simple of the lands in the parish of Speldhurst which are numbered 185 186 and 187 on the deposited plans (in this section called "the owner") shall unless otherwise agreed in writing between the Corporation and the owner apply and have effect (that is to say) :—

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—
Stather
Hunt.

(1) The Corporation shall not under the powers of this Act take or acquire by compulsion the portions of the said lands numbered 185 and 187 which are coloured pink upon the plan signed in triplicate by the Right Honourable the Viscount Hutchinson (Earl of Donoughmore) the Chairman of the Committee of the House of Lords to which the Bill for this Act was referred one copy of which plan has been deposited in the Parliament Office House of Lords the second in the Committee and Private Bill Office House of Commons and the third with the town clerk but the Corporation shall purchase and the owner shall sell and convey to the Corporation the fee simple of the lands which are coloured blue upon the said plan subject to any tenancy affecting the same on the fifteenth day of April nineteen hundred and twenty-nine for such price or consideration as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by agreement such purchase and sale to be completed as soon as may be reasonably practicable after the passing of this Act and in any case within twelve calendar months after such passing and the owner not to be under any obligation to deduce more than twenty years' title thereto :

(2) Within six months after the lands coloured blue upon the said plans shall have been sold and conveyed to the Corporation by the owner in accordance with the provisions of this section the Corporation shall to the reasonable approval of the owner plant hedges or construct fences along the south-westerly and south-easterly sides of the said lands coloured blue and along

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the westerly (but not the south-westerly) side of the lands coloured pink upon the said plan and shall thereafter to the like satisfaction maintain such hedges or fences (as the case may be) :

- (3) The Corporation shall so soon as reasonably practicable after they shall have commenced to construct upon the said lands coloured blue any such waterworks as are referred to in subsection (4) of this section plant to the reasonable approval of the owner along the south-eastern boundary of the said lands coloured blue and immediately to the west of the western boundary of the said lands coloured pink a double belt of quick-growing trees :
- (4) The Corporation shall not use or permit to be used any part of the lands which may be acquired by them from the owner under the provisions of the section of this Act of which the marginal note is " Power to acquire lands " or this section for the construction of any waterworks other than a water tower of a height not exceeding seventy feet above ground level and such lines of pipes and such other works incidental to such water tower and lines of pipes as the Corporation think fit and the Corporation shall not erect upon the said lands any dwelling-house except such dwelling-house or dwelling-houses as they may require for the use and occupation of servants of the Corporation :
- (5) The Corporation shall not sell the said lands or any of them to any person without having previously offered the same to the owner at a price to be determined failing agreement by arbitration as hereinafter provided :
- (6) Any question or dispute that may arise between the Corporation and the owner under subsections (2) (3) (4) or (5) of this section shall be referred to and determined by a single arbitrator to be appointed by the President of the Surveyors' Institution on the application

of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination. A.D. 1929.
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7. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the county of Kent for the correction thereof and if it appears to the justices hearing the application that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the said county and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and the Corporation may take the lands in accordance with such certificate. Correction of errors &c. in deposited plans and book of reference.

8. The powers of the Corporation for the compulsory purchase of lands under the provisions of this Part of this Act shall cease after the expiration of three years from the first day of October nineteen hundred and twenty-nine. Period for compulsory purchase of lands.

9.—(1) All private rights of way over any lands which the Corporation are authorised by this Act to acquire compulsorily shall be extinguished as from the date of the acquisition of such lands by the Corporation if the Corporation shall by resolution so determine and give notice in writing of such their resolution to the owner of any right of way referred to therein. Extinction of private rights of way.

(2) Provided that the Corporation shall make full compensation to all persons interested in respect of any rights extinguished under the provisions of this section

A.D. 1929. — and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

Compensation in case of recently acquired interest.

10. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the fifteenth day of November nineteen hundred and twenty-eight if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Power to enter upon property for survey and valuation.

11. The Corporation and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk may at all reasonable times upon giving in the first instance twenty-four hours' and subsequently twelve hours' previous notice in writing enter upon and into the lands and buildings by this Act authorised to be taken and used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Further powers for the acquisition of land.

12.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof Any money so borrowed shall be repaid within such period as may be prescribed by the Minister.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in

respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the general rate fund and general rate.

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(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

(a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister; or

(b) in such other manner as may be approved by the Minister.

13.—(1) The Corporation may purchase or take on lease dwelling-houses and other buildings for persons employed by them for the purposes of their several undertakings and offices and other buildings for those purposes and may erect fit up maintain and let any such buildings upon any lands for the time being belonging to the Corporation for the purposes of the said undertakings and (subject to the terms of the lease) upon any lands for the time being leased to the Corporation for those purposes.

Dwelling-houses for persons in Corporation's employment.

(2) Nothing contained in this section shall empower the Corporation to create or permit a nuisance.

14.—(1) Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under

Power to retain sell &c. lands.

A.D. 1929. — this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(2) Provided that—

(a) the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such lands or any interests therein at a price or rent or for a consideration of a value less than the current market value of such lands or interests;

(b) nothing in this section shall be taken to dispense with the necessity for obtaining the consent of the Board of Education under sections 113 to 115 of the Education Act 1921 to any sale lease exchange appropriation or other disposition of any lands of the Corporation in any case in which such consent would be required if this Act had not been passed.

(3) Nothing in this section contained shall release the Corporation or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands were or may hereafter be conveyed or leased to or otherwise acquired by the Corporation or any person from or through whom the Corporation may have derived or may hereafter derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

Proceeds of
sale of sur-
plus lands.

15.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be

acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister.

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(2) Provided that—

- (a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

16.—(1) For the purpose of protecting against pollution nuisance encroachment or injury any of the waters which the Corporation are empowered to take the Corporation may by agreement purchase take on lease or otherwise acquire any lands easements or rights and may hold such lands and any other lands which the Corporation may have acquired for the purposes of their water undertaking so long as they shall deem it necessary or expedient for those purposes :

Power to hold lands and exercise powers for protection of waters.

Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any lands acquired under this section nor erect any buildings thereon except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with the water undertaking but the restrictions of this section as to the erection of buildings shall not apply in respect of lands leased or sold by the Corporation.

(2) The Corporation may in and upon the lands referred to in subsection (1) of this section construct and lay down drains sewers watercourses catchpits and other works and conveniences necessary or proper for the

A.D. 1929. purpose of intercepting or taking all foul waters arising or flowing upon such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

(3) (a) The Corporation may make and carry into effect agreements with the owners lessees or occupiers of any lands with reference to the execution by the Corporation or by such owners lessees or occupiers of such works as may be necessary for the purpose of draining such lands or any of them or for more effectually collecting conveying or preserving the purity of the waters which the Corporation are for the time being authorised to take.

(b) Any agreements in writing entered into under this subsection shall be binding on the parties thereto and on their successors in title and may be enforced by either party or their successors (as the case may be) in any court of competent jurisdiction.

Reservation
of water
rights &c.
on sale.

17.—(1) The Corporation on selling any lands acquired by them in connection with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to the use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

(2) Any such reservation special condition restriction or provision which is contained in any agreement in writing between the Corporation and any person shall be binding on the parties thereto and on their successors in title and may be enforced by either party or their successors (as the case may be) in any court of competent jurisdiction.

PART III.

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WATERWORKS.

18. Subject to the provisions of this Act the Corporation may upon lands acquired by them for the purposes of or in connection with the water undertaking of the Corporation whether under the provisions of this or any other Act make and maintain all such works and conveniences as they may consider necessary or convenient in connection with or subsidiary to the existing or the authorised waterworks of the Corporation for the time being or for inspecting maintaining repairing cleansing managing working or using the same :

Power
to make
additional
waterworks.

Provided that nothing in this subsection shall exonerate the Corporation from any action indictment or other proceeding for nuisance in the event of any nuisance being caused or permitted by them.

19. Subject to the provisions of this Act the waterworks to be constructed under the authority of this Act shall for all purposes be deemed to form part of the water undertaking of the Corporation.

Works to
form part
of under-
taking.

20. Subject to the provisions of this Act the Corporation shall have and may exercise the powers which a local authority would have under section 54 of the Public Health Act 1875 with respect to the carrying of water mains within and without their district and for the purposes of that section the water limits shall be deemed to be the district of the Corporation :

Further
powers in
relation to
water mains.

Provided that the Corporation shall not exercise such powers through across or under any lands or property belonging to a railway company and used for the purposes of their undertaking without the consent of such company but such consent shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of such company or the Corporation.

21. The provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets shall apply with the necessary modifications to the construction laying down erection and maintenance in any streets or roads of any discharge pipes telephone or telegraph

Application
of Water-
works
Clauses
Act 1847.

A.D. 1929. — posts wires conductors or apparatus which the Corporation may erect or lay down for the purposes of their water undertaking.

For protection of
Postmaster-General.

22. Any telephone or telegraph posts wires conductors or electric apparatus made maintained constructed laid down or erected under the provisions of this Act shall not be used in contravention of the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869 and shall not be constructed maintained and used so as to cause any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Discharge of
water into
streams.

23.—(1) For the purpose of executing constructing enlarging extending repairing cleansing emptying or examining any reservoir well adit conduit line of pipes or other work of the Corporation the Corporation may cause the water in any such work to be discharged into any available stream watercourse or ditch.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by reason or in consequence of the exercise of such power the amount of compensation to be settled in case of difference by arbitration in accordance with the provisions of the Arbitration Act 1889.

(3) The powers of this section shall not be exercised so as to damage or affect the railways or works of the Southern Railway Company.

Meters in
streets to
measure
water or
detect
waste.

24.—(1) Subject to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes the Corporation may for the purpose of measuring the quantity of water supplied or of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stopcocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets sewers gas air or water pipes electric lines wires and apparatus.

(2) Provided that the Corporation shall not interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878 : A.D. 1929.

Provided also that the Corporation shall not without the previous consent of the Southern Railway Company exercise the powers of this section in respect of any streets or apparatus belonging to or maintained by that company but such consent shall not be unreasonably withheld and any difference which may arise between that company and the Corporation as to whether such consent is in any case unreasonably withheld shall be determined by an engineer to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other.

PART IV.

SUPPLY OF WATER.

25. The provisions of section 35 of the Waterworks Clauses Act 1847 shall in their application to the Corporation be read and construed as if the one tenth part of the expense of providing and laying down pipes mentioned in that section were one eighth part of such expense. Amendment
of section 35
of Water-
works
Clauses Act
1847.

26.—(1) Any rural district council in respect of any part of their district which is within the water limits may give and enter into any guarantee or contract for securing payment to the Corporation of such periodical or other sum or sums of money at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Corporation for the purpose of or with respect to the providing or laying down by the Corporation of any pipe or works for the supply of water within any part of such district which is within the water limits. Guarantees
by district
councils.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise any money which may become payable to the Corporation under this section in like manner as money may be raised under the provisions of any such general Act.

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(3) Provided that where such money is raised by means of a rate such rate shall be or shall be deemed to be a special rate but the provisions of this subsection shall not affect the operation of section 56 of the Local Government Act 1929.

Amendment
of section 8
of Act of
1890.

27. Section 8 (Water rates to be paid in advance half-yearly) of the Act of 1890 shall be read and have effect as if the thirty-first day of March were therein referred to instead of the twenty-fifth day of March and as if the thirtieth day of September were therein referred to instead of the twenty-ninth day of September where such last-mentioned date is mentioned for the second time.

Water rate
&c. may be
collected
with general
rate.

28.—(1) Any water rate or charge payable to the Corporation may be collected together with the general rate and the same books may be used for the said water rate and charge and general rate.

(2) The general rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the general rate and water rate or charge shall be in such form as the Minister may from time to time prescribe.

Exclusion of
supplies for
certain pur-
poses from
domestic
purposes.

29. Where a person who takes a supply of water for domestic purposes from the Corporation desires to use for or in connection with a refrigerating apparatus any of the water so supplied the Corporation shall be entitled to require that all water so used shall—

(a) be taken by measure and be paid for accordingly and in that event the minimum quarterly charge for the water shall be ten shillings; or

(b) be paid for at such rates as may be agreed between the consumer and the Corporation.

Supply of
water to
houses
partly used
for trade
&c.

30.—(1) The Corporation shall not be bound to supply with water otherwise than by measure (a) any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required or (b) any workhouse public institution hospital asylum (whether public or private) sanatorium club hotel public-house inn public assembly hall or restaurant or (c) any boarding-house capable of accommodating twenty or more persons including the persons usually resident

therein or (d) any school not maintained by the local education authority. A.D. 1929.

(2) Where a supply of water to a farmhouse is used for farming purposes the Corporation may require that the supply for farming purposes shall be taken by meter but nothing in this section shall authorise the Corporation to refuse a supply of water for domestic purposes to a farmhouse at the ordinary rate calculated on the yearly value thereof as defined by section 54 (Ascertainment of yearly value) of the Tunbridge Wells Water Act 1865.

(3) The minimum half-yearly charge for a supply of water by measure to any of the premises in this section mentioned shall be one-half of the annual amount which would be payable according to the scale for the time being in force for a domestic supply furnished to a dwelling-house of the same yearly value as defined by the said section 54.

31. When water supplied by the Corporation for domestic purposes is used for washing horses carriages or motor cars or for other purposes in premises where horses carriages or motor cars are kept for private use the Corporation may if a hose-pipe or other similar apparatus is used charge such additional sum not exceeding twenty-five shillings per annum (and where more motor cars than one are ordinarily kept a further sum not exceeding ten shillings per annum for each motor car beyond the first as the Corporation may prescribe) and any sum charged under the provisions of this section shall be paid half-yearly in advance and be recoverable in the same manner as water rates.

Supply of
water by
hose-pipe
to stables
&c.

32.—(1) Notwithstanding anything in any Act or Order relating to the Corporation a person shall not be entitled to demand or continue to receive from the Corporation a supply of water to any caravan shack hut tent or other like structure unless he has agreed with the Corporation to take a supply of water by meter and to pay to the Corporation such minimum annual sum as will give them a reasonable return on the capital expenditure incurred by them in providing the supply or supplies required by him and will cover other standing charges incurred by them in order to meet the possible maximum demand for his caravan shack hut tent or structure and will yield a reasonable return on the cost

Special
terms for
supplies to
caravans
shacks &c.

A.D. 1929.

of the water consumed or used by him and unless he has secured to the reasonable satisfaction of the Corporation by way of deposit or otherwise payment of such a sum as may be reasonable having regard to the possible maximum demand of such person for his caravan shack hut tent or structure.

(2) The sum to be so paid and the security to be so given shall be determined in default of agreement by a court of summary jurisdiction who may also order by which of the parties the costs of the proceedings before them shall be paid and the decision of the court shall be final and binding on all parties.

Byelaws for preventing waste of water.

33.—(1) The Corporation may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this Act referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Corporation are bound to afford and do in fact afford or are prepared on demand to afford a constant supply.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Corporation may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Corporation from the person on whose credit the water is supplied as the water rates in respect of the premises are recoverable.

Power to person liable to maintain pipes &c.

34.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Acts 1847 and 1863 to maintain any pipe or apparatus the person liable to maintain the same shall have the like power to open

the ground as is conferred upon him by and subject to the conditions of sections 48 to 52 (relating to pipes to be laid by the inhabitants) of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

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—
to open
ground.

(2) The Corporation may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the water limits execute such works on behalf of such owner or occupier and any expenses incurred by the Corporation shall be repaid by the owner or occupier with whom the agreement is made.

35. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Corporation in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the waterworks engineer of the Corporation or other officer duly authorised in that behalf by the Corporation.

Mainten-
ance of
common
pipe.

36. If by reason of any injury to or defect in any communication pipe which the Corporation are not under obligation to maintain there is any waste or risk of waste of water or injury or risk of injury to person or property or to the health of any person it shall be lawful for the Corporation by and under the direction of their duly authorised officer to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Corporation in executing such repairs shall be recoverable by the Corporation from the owner of the premises supplied or (in cases where the owner of any premises satisfies the Corporation that the communication pipe is repairable by the occupier of such premises) from the occupier :

Power to
Corporation
to repair
communica-
tion pipes.

Provided that except in case of emergency the Corporation shall not under the powers of this section enter into any house or private premises unless they shall

A.D. 1929. — have given to the occupier of such house or premises not less than twenty-four hours' notice of their intention so to enter.

Register of meter to be prima facie evidence.

37.—(1) Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *prima facie* evidence of the quantity of water consumed and in respect of which any water rate is charged and sought to be recovered by the Corporation :

(2) Provided that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Injuring meters &c.

38.—(1) Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Corporation or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Corporation shall (without prejudice to any other right or remedy for the protection of the Corporation) be liable to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained.

(2) In any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Corporation or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Corporation the Corporation may enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for insuring the proper registering by such meter or instrument of the quantity of water supplied by means thereof and the

expense of such repair and of all such works matters and things shall be repaid to the Corporation by the person so offending and may be recovered by them as water rates are recoverable. A.D. 1929.

(3) The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Corporation when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

39. Every person who shall wilfully (without the consent of the Corporation) or negligently close or shut off any valve cock or other work or apparatus belonging to the Corporation whereby the supply of water shall be interfered with shall (without prejudice to any other right or remedy of the Corporation) be liable on conviction to a penalty not exceeding five pounds and the Corporation may in addition thereto recover the amount of any damage by them sustained. Provided that this section shall not apply to a consumer closing a valve fixed on his communication pipe. Interference with valves pipes and fittings.

40. In addition to the powers conferred by section 57 of the Waterworks Clauses Act 1847 any officer of the Corporation may at all reasonable times between the hour of four o'clock in the afternoon and one hour after sunset enter into any house or premises supplied with water by the Corporation in order to examine if there be any waste or misuse of such water and if any person hinder any such officer from entering or making such examination as aforesaid he shall for every such offence be liable to a penalty not exceeding five pounds. Extension of power to inspect premises.

41.—(1) In this section—

“the district” means the urban district of Southborough as constituted at the date of this Act;

“the council” means the urban district council of Southborough;

“the signed map” means the map four copies of which have been signed by the Right

As to supply of water in Southborough Urban District.

A.D. 1929.

Honourable the Viscount Hutchinson (Earl of Donoughmore) the Chairman of the Committee of the House of Lords to which the Bill for this Act was referred one copy of which map has been deposited in the Parliament Office of the House of Lords one in the Committee and Private Bill Office of the House of Commons one with the town clerk at his office and one with the clerk to the council at his office.

(2) Notwithstanding anything contained in the Tunbridge Wells Water Act 1865 or any other enactment the district (except that portion thereof which is coloured pink upon the signed map) shall cease to form part of the water limits :

Provided that notwithstanding anything contained in this subsection the Corporation may—

(a) by agreement supply water in bulk to the council;

(b) with the consent of the council supply water to any premises within or for use within the district.

(3) Notwithstanding anything contained in any enactment the council shall not except with the consent of the Corporation supply water within or for use within the portion of the district which is coloured pink upon the signed map.

PART V.

TOWN HALL AND BATHS.

Erection of
town hall
&c.

42. The Corporation may—

(a) upon the lands in the borough which they are authorised to acquire by the section of this Act of which the marginal note is "Power to acquire lands" and upon other lands in the borough belonging to the Corporation and adjacent or near to such last-mentioned lands erect and maintain a town hall including a council chamber public hall art gallery museum public library court-house police-court police station fire brigade station and

any buildings and premises for the purposes of municipal offices or of carrying on the business and the several undertakings of the Corporation and may fit up and furnish the same and provide all necessary approaches accesses works and conveniences in connection therewith;

A.D. 1929.

- (b) for the purposes mentioned in paragraph (a) of this section alter adapt extend or otherwise deal with existing buildings upon any lands so acquired;
- (c) grant or let with or without charge the use of the whole or any part of any buildings erected by them under the powers of this section or existing upon any lands so acquired for the purpose of any public or other meetings or any musical or other entertainments or for other purposes approved by the Corporation on such terms and conditions as they may think fit:

Provided that the Corporation shall not grant or let the use of the whole or any part of any buildings erected by them under the powers of this section or existing upon any lands so acquired for the exhibition of cinematograph films (where a charge is made for admission to the exhibition) or for the purpose of stage plays or the giving of variety entertainments by professional performers unless a reasonable charge or rent is paid to the Corporation in respect of the granting or letting of such use.

43. All baths and washhouses vested in belonging to or used or enjoyed by the Corporation immediately before the passing of this Act shall be and continue to be so vested in and used and enjoyed by the Corporation.

Existing
baths to
be con-
tinued.

44. Notwithstanding anything contained in the Act of 1890 the Corporation may make such reasonable charges for the use of any baths swimming baths and washhouses as they think fit.

Charges for
use of baths
and wash-
houses.

45. The Baths and Washhouses Acts 1846 to 1925 shall be deemed to have been adopted by the Corporation and shall apply and have effect in the borough subject to the provisions of this Act.

As to Baths
and Wash-
houses Acts.

A.D. 1929.

PART VI.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

Power to
borrow.

46.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment of the said sums and the payment of interest thereon they may mortgage or charge the revenues of the Corporation and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as “the prescribed period”) mentioned in the third column of the said table (namely):—

1.	2.	3.
Purpose.	Amount.	Period of Repayment.
(a) The purchase of lands - - -	£ 97,700	Sixty years from the date or dates of borrowing.
(b) The costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister borrow such further money as may be necessary for any of the purposes of this Act.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister and that period shall be the prescribed period for the purposes of this Act and the enactments incorporated therewith or applied thereby.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

Certain
provisions
of Public

47. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts any sums which the Corporation may borrow

under or for the purposes of this Act shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

A.D. 1929.

Health Acts
not to
apply.

48. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debenture stock or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) and section 16 (Annual return as to sinking fund) of that Act.

Mode of
raising
money.

49.—(1) In addition to any other form of borrowing the Corporation may borrow any sums which they have power to borrow under this Act or any other Act or Order by the issue of bonds to be called "Corporation bonds" (and in this Act referred to as "bonds") in accordance with the provisions of this Act.

Power to
borrow by
issue of
bonds.

(2) The provisions set out in the First Schedule to this Act shall have effect with regard to bonds.

(3) All bonds issued under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of issue of the bonds or on any other ground whatsoever and shall also rank equally with and have the same status as all other securities issued by the Corporation.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899 as amended by section 10 of the Finance Act 1907.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

A.D. 1929.

Mode of
payment off
of money
borrowed.

50. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months or when the moneys are repaid by half-yearly instalments within six months from the date of borrowing.

Sinking
fund.

51.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of any statutory borrowing power (except money borrowed by the issue of stock) such sinking fund shall be formed and maintained either—

(a) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(b) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds ten shillings per centum per annum or such other rate as the Minister may from time to time approve will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall subject to the provisions of this Act unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may

be applied by the Corporation towards the equal annual payments to the fund. A.D. 1929.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the moneys for the payment of which the sinking fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose and if it appears to the

A.D. 1929. Minister that any such increase is necessary the Corporation shall increase the payments to such extent as the Minister may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Minister be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Minister be sufficient to repay the moneys in respect of which the sinking fund is formed within the prescribed period the Corporation may with the consent of the Minister discontinue the annual payments to such sinking fund until the Minister shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Minister may determine.

(12) All moneys which at the date of this Act are standing to the credit of any sinking fund in respect of moneys borrowed otherwise than by the issue of stock and not applied in repayment thereof shall be transferred to the sinking fund established under this Act and the sums so transferred shall be taken into account in calculating the future payments to be made to the sinking fund under this section.

52.—(1) The Corporation shall have power—

A.D. 1929.

(a) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended forthwith to be repaid; or

Power to
re-borrow.

(b) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(a) by instalments or annual payments; or

(b) by means of a sinking fund; or

(c) out of moneys derived from the sale of land; or

(d) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

53. In calculating under subsection (2) of section 234 (Regulations as to exercise of borrowing powers) of the Public Health Act 1875 the amount which the Corporation may borrow the amount at the time of such calculation of any sinking fund or redemption fund accumulated for the purpose of providing for

As to
section 234
of Public
Health Act
1875.

A.D. 1929. the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the outstanding loans contracted by the Corporation under those Acts.

Power to
use one
form of
mortgage
for all
purposes.

54.—(1) Where the Corporation have from time to time any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first grant of a mortgage under this section.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods and by the means within and by which they would have been repayable respectively if this section had not been enacted.

(6) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the payment of interest upon the sums secured by mortgages granted under this section.

(7) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the

register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. A.D. 1929.

Every such register shall be open to inspection by any mortgagee or other person entitled to any mortgage granted under this section during office hours at the said office without fee or reward and the town clerk or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(8) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate rights and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect and shall not contain any recital trust power or proviso whatsoever.

(9) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(10) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate rights and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any moneys secured thereby.

(11) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required

A.D. 1929. — to be made he shall be liable to a penalty not exceeding twenty pounds.

As to mortgage of revenues of Corporation.

55. Any reference in any mortgage or charge granted by the Corporation to the revenue of any undertaking of the Corporation shall be deemed to be a reference to the revenues of the Corporation.

Consolidated loans fund.

56.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or Order on and after the thirty-first day of March nineteen hundred and thirty the Corporation may (if they think fit) establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

- (a) all moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys borrowed without security in connection with the exercise of any statutory borrowing power;
- (b) all moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose;
- (c) the appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers or otherwise provided for the repayment of debt; and
- (d) a sum or sums equal to the aggregate amount of all dividends and interest payable in each year on bonds stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding:

And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the date as from which the consolidated loans fund is established.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation— A.D. 1929.
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- (a) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation ;
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation ; and
- (c) in the payment of dividends and interest on the bonds stock mortgages or other securities issued in exercise of any statutory borrowing power and remaining outstanding :

And the moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund including the interest arising from the investments thereof shall not except with the consent of the Minister be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

57. The provisions of section 79 of the Public Health Act 1925 shall apply in relation to any sums set apart as a sinking fund or a redemption fund for the purpose of paying off moneys borrowed by the Corporation in the Application of section 79 of Public Health Act 1925.

A.D. 1929. — exercise of any statutory borrowing power as if all such moneys had been borrowed by the Corporation in exercise of their powers under the Public Health Act 1875.

Use of
moneys
forming
part of
sinking and
other funds.

58. Notwithstanding anything contained in any previous enactment the Corporation may use for the purpose of any statutory borrowing power exercisable by them any moneys forming part but not for the time being required for the purposes of any fund accumulated for the redemption of debt or as a reserve renewals depreciation contingent insurance or other similar fund (in this section referred to as "the lending fund") subject to the following conditions :—

- (1) The moneys so used shall be repaid to the lending fund within the period by the methods and out of the fund rate or revenue within by and out of which a loan raised under the statutory borrowing power would be repayable :

Provided that the Corporation shall repay to the lending fund the moneys so used or the balance thereof for the time being outstanding as the case may be as and when the same shall be required for the purposes of the lending fund and may if they so resolve repay the same at any time within the period aforesaid and in either case the repayment shall be made out of the fund rate or revenue aforesaid or out of moneys which would have been applicable to the repayment of a loan, if raised under the statutory borrowing power ;

- (2) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and such interest shall be paid out of the fund rate or revenue which would be applicable to the payment of interest on a loan raised under the statutory borrowing power ;
- (3) The statutory borrowing power shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had

been raised in exercise of the power and the provisions of any enactment as to re-borrowing of sums raised under the statutory borrowing power shall apply accordingly. A.D. 1929.

59. All moneys borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for current expenses) to which capital is properly applicable. Application of money borrowed.

60. It shall not be obligatory on the Corporation to receive or register any transfer assignment certificate of death burial bankruptcy or marriage probate letters of administration or other document evidencing a transmission of any authorised security (except securities issued under the Local Loans Act 1875 and except securities to which regulations made under section 52 (Issue of stock) of the Public Health Acts Amendment Act 1890 apply) except upon the production to and temporary deposit with the town clerk of the security or the certificate thereof for the purpose of the endorsement thereon of a memorandum of such transmission or the issue of a new security or certificate thereof and in case of the issue of a new security or certificate for the purpose of cancellation of the security or certificate so deposited. Evidence of transfer or transmission of securities.

61. If any money is payable to a mortgagee or stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Corporation. Receipt in case of persons not sui juris.

62. Where more persons than one are registered as joint holders of any mortgage of the Corporation any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation by any other of them. Interest on mortgages held jointly.

63. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the general rate fund. Expenses of execution of Act.

64.—(1) The town clerk shall if and when he is requested by the Minister so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power. Return to Minister with respect to repayment of debt.

A.D. 1929.
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(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the town clerk or other the chief financial officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to transmit such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the transmitting of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision (other than the foregoing provisions of this section) of any enactment now in force in the borough requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Application
of revenue
and pay-
ment of
expenses of
under-
takings.

65.—(1) Notwithstanding anything contained in any previous enactment all moneys received by the Corporation (including the income arising from the investment of any reserve or renewals fund) on account of the revenue of any undertaking for the time being of the Corporation from which revenue is derived shall be carried to and shall form part of the general rate fund

and all payments and expenses made and incurred in respect of those undertakings shall be paid out of that fund. A.D. 1929.
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(2) The Corporation may (if they think fit) apply money received by them on account of the revenue of their water undertaking in the construction renewal extension and improvement of the works and conveniences for the purposes of such undertaking.

(3) (a) Nothing contained in this section shall be deemed to authorise the Corporation to apply or dispose of the net surplus revenue and the annual proceeds of the reserve fund (when amounting to the prescribed limit) of the electricity undertaking otherwise than in accordance with the provisions of section 43 of and the Fifth Schedule to the Electricity (Supply) Act 1926 or with the provisions of section 9 of the Tunbridge Wells Electric Lighting (Extension) Order 1915.

(b) Any reserve fund formed under section 7 of the Electric Lighting (Clauses) Act 1899 shall (in any year in which interest from any investments of that fund is carried to and forms part of the general rate fund under subsection (1) of this section) in that year be increased by a sum equal to the amount of such interest if and so far as the amount of the fund for the time being is less than the prescribed maximum.

66.—(1) The Corporation shall notwithstanding the provisions of any Act or Order to the contrary keep their accounts so as to distinguish capital from revenue and as to revenue so as to show under a separate heading or division in respect of each of the undertakings of the Corporation from which revenue is derived (each of which is in this section referred to as "the undertaking") on the one side all receipts (including the interest on any reserve fund authorised in connection therewith) in respect of the undertaking and on the other side all payments and expenses in respect of the undertaking such payments and expenses being divided so as also to show in each case the amounts expended in respect of each of the following purposes (that is to say):—

Separate
accounts to
be kept.

(a) The working and establishment expenses and cost of maintenance of the undertaking;

(b) The interest on moneys borrowed and applied by the Corporation for the purposes of or connected with the undertaking;

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—

- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys borrowed and applied for the purposes of the undertaking;
- (d) All other expenses (if any) of the undertaking properly chargeable to revenue;
- (e) The amount (if any) paid to any reserve fund which the Corporation are authorised to maintain.

(2) The Corporation shall show in their accounts relating to any undertaking or purpose all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the undertaking or purpose.

(3) In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as may be reasonably practicable apportion between those accounts or carry to either of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Reserve
fund for
water under-
taking.

67.—(1) The Corporation may (if they think fit) provide a reserve fund in respect of their water undertaking by setting aside such an amount as they may from time to time think reasonable and (subject to the provisions of this Act) investing the same in statutory securities and accumulating the same until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of the undertaking not exceeding a sum equal to one-tenth of the aggregate capital expended for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of any extension of the works forming part thereof or otherwise for the benefit of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(2) Resort may be had to a reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum. A.D. 1929.
 —

68. The following provisions of the Act of 1890 and the Order of 1923 shall extend and apply to and for the purposes of this Act as if the same were with all necessary modifications re-enacted in this Act (namely):— Application of provisions of previous enactments.

The Act of 1890—

- Section 193 (Provisions as to mortgages);
- Section 197 (Protection of lenders from inquiry);
- Section 199 (Corporation not to regard trusts);
- Section 200 (Application of moneys borrowed);
- Section 255 (Informations by whom to be laid);
- Section 259 (Damages and charges in case of dispute to be settled by justices);
 and
- Section 267 (Penalties to be paid over to treasurer &c.).

The Order of 1923—

- Article 3 (Limiting powers to abstract water);
 and
- Article 4 (Letting of lands).

69. The Corporation may pay out of the general rate fund as expenses incurred by them under the Municipal Corporations Act 1882— Subscriptions to local government associations and other expenses.

- (a) reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of such associations or any of them and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings;

A.D. 1929.

(b) the reasonable expenses of the Corporation in providing public entertainments on the occasion of or otherwise in connection with public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough.

Further
powers as
to Corpor-
ation
stock.

70.—(1) The proviso to subsection (1) of section 204 (Creation of Corporation stock) of the Act of 1890 is hereby repealed.

(2) Notwithstanding anything contained in the Act of 1890 the Corporation may exercise any statutory borrowing power by the creation and issue of a further new class or classes of redeemable stock at such prices and bearing such dividends as the Corporation may determine by the resolution creating such stocks.

(3) Each class of stock created under subsection (2) of this section shall bear a distinguishing name or number to be given by the resolution creating it and shall be created on and subject to such terms and conditions as that all stock in the class shall bear one and the same rate of dividend and shall become redeemable as hereinafter provided at the expiration of the same period from the first creation of the stock.

(4) After the expiration of such a period from the creation of the class of stock under subsection (2) of this section as the Corporation shall by the resolution creating the same declare all stock comprised therein shall be redeemable at par at the option of the Corporation and within such a period (not exceeding sixty years) from the first creation of such class of stock as the Corporation shall by such resolution declare the whole of the stock comprised therein shall be redeemed or purchased and extinguished.

(5) All stock created and issued under this section shall be charged in the same manner as and rank *pari passu* with stock issued under the Act of 1890 and shall otherwise be subject to the provisions of that Act as altered by subsequent Acts.

(6) A separate loans fund to bear the name given to it by the resolution creating each class of stock shall be established and formed in respect of each class which may be created and issued by the Corporation by virtue of this section and all the provisions of the Act of 1890 as

altered by subsequent Acts in regard to the Tunbridge Wells Corporation Consolidated Loans Fund shall mutatis mutandis apply to any loans fund so to be established and formed. A.D. 1929. —

71.—(1) Subject to the provisions of this section the Corporation may accept hold and administer any gift of property whether real or personal for any public purpose connected with the borough and may execute any works (including works of maintenance or improvement) incidental to or consequential on the exercise of the powers conferred by this section and where the purposes of the gift are purposes for which the Corporation are empowered to expend money raised from the local rate they may subject to any condition or restriction attaching to such power expend money so raised in the execution of such works in relation to the subject-matter of the trust. Gifts and bequests.

(2) This section shall not extend to property relating to affairs of the church within the meaning of the Local Government Act 1894 or to an ecclesiastical charity within the meaning of that Act.

(3) Accounts of the income and expenditure of the Corporation under this section shall be kept by the chief financial officer and shall be made up and audited as part of the general accounts of the Corporation.

72.—(1) Subsection (3) of section 2 of the Public Health Interments Act 1879 shall be extended to enable the Corporation to accept a capital sum for the purpose of maintaining a particular grave or grave space or monument either in a cemetery provided under the Public Health Acts 1875 to 1925 or in a burial ground provided under the Burial Acts 1852 to 1906. Extension of section 2 (3) of Public Health Interments Act 1879.

(2) Any such sum shall be invested in statutory securities and the interest thereof applied in maintaining the grave or grave space or monument in such manner as the Corporation think fit.

(3) Any such capital sum and the interest thereof shall be shown separately in the accounts of the Corporation relating to their cemetery but otherwise the said interest shall be paid into the fund to which receipts derived from the cemetery are paid.

A.D. 1929.

Recovery of
rate from
persons
removing.

73. If a justice is satisfied on complaint by any rate collector that any person is quitting or about to quit any premises in the borough and has failed to pay on demand any general rate or water rate or charge which may be due from him and intends to evade payment of the same by departing from the borough the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the said rate collector or other authorised officer to seize forthwith and detain the goods and chattels of such person until the complaint is determined upon the return of the summons.

Service of
summons on
members of
council.

74. Notwithstanding anything contained in the Second Schedule to the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode of every member of the council by post by prepaid letter at the ordinary rate of postage.

Evidence of
appoint-
ments
authority
&c.

75. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or any committee of the council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the council or to prove any resolution or order of the council or any resolution order or report of any committee of the council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or of the town clerk shall be prima facie evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

Authentica-
tion and
service of
notices.

76.—(1) Where any notice or demand under this Act or under any local Act or Order or any byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Order or byelaw for the time being in force within the borough may be served in the same

manner as notices under the Public Health Act 1875 are by section 267 (Service of notices) of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business. A.D. 1929.

(3) Section 257 (Form and service of notices by Corporation) of the Act of 1890 is hereby repealed.

77. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to byelaws authorised to be made by the Corporation under the powers of this Act. General provisions as to byelaws.

78. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of any local enactment (including this Act) as if the same were re-enacted therein. Application of section 265 of Public Health Act 1875.

79. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

80. Where the payment of more than one sum by any person is due under any Act or Order from time to time in force within the borough any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him. Several sums in one summons.

81. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner. Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

A.D. 1929.

Judges not
disqualified.Inquiries by
Minister.

82. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act or of the Act of 1865 by reason of his being liable to any rate.

83.—(1) The Minister may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the exercise of any powers conferred upon him or the giving of any consents under this Act and the inspectors of the Ministry of Health shall for the purposes of any such inquiry have all such powers as they may have for the purposes of inquiries directed by the Minister under the Public Health Act 1875.

(2) The Corporation shall pay to the Minister any expenses incurred by the Minister in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by the Minister not exceeding five guineas a day for the services of such inspector.

Repeal.

84.—(1) The following provisions of the Act of 1865 the Act of 1890 the Tunbridge Wells Order 1897 and the Order of 1923 are hereby repealed as from the date of this Act :—

The Act of 1865—

Section 70 (Waterworks account);

Section 74 (Application of moneys received by Commissioners under Act);

Section 76 (Contracts for supply of water &c. not to disqualify Commissioners);

Section 77 (Commissioners &c. not to be disqualified as justices);

Section 78 (Forms of Public Health Acts may be used);

Section 79 (Authentication of notices &c.);

Section 80 (Several names in one warrant);

Section 81 (Costs of distress).

The Act of 1890—

Section 13 (Register of meter to be prima facie evidence);

Section 196 (Annual return to Local Government Board with respect to sinking fund);

Section 266 (Several sums in one summons).

The Tunbridge Wells Order 1897—
Article IX.

A.D. 1929.

The Order of 1923—

Article 2 (Purchase of further lands).

(2) The following provisions of the Act of 1865 and of the Act of 1890 shall be repealed as from the date upon which byelaws made by the Corporation under the provisions of the section of this Act of which the marginal note is "Byelaws for preventing waste of water" come into operation :—

The Act of 1865—

Section 46 (Power to Commissioners to make regulations for preventing waste of water);

Section 47 (Power to Commissioners to refuse supply where regulations not complied with);

Section 48 (For preventing waste of water);

Section 49 (Penalty for suffering pipes &c. to be out of repair);

Section 50 (Pipes &c. out of repair to be repaired).

The Act of 1890—

Section 14 (Repair of meters).

85. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation in the first instance out of the general rate fund and general rate but may ultimately be paid out of moneys to be borrowed under the authority of this Act for that purpose.

Costs of
Act.

A.D. 1929.

The SCHEDULES referred to in the
foregoing Act.

THE FIRST SCHEDULE.

PROVISIONS AS TO CORPORATION BONDS.

1. Bonds shall be secured on the rates and revenues of the Corporation.

2. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than five years as the Corporation may determine.

3. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

4. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the town hall Tunbridge Wells on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

5.—(1) The chief financial officer shall act as registrar and shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars:—

(a) The name address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;

(b) The date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be *primâ facie* evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds. A.D. 1929.

6.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect :—

No.

BOROUGH OF TUNBRIDGE WELLS.

Tunbridge Wells Corporation Bonds.

—per centum Tunbridge Wells Corporation bond
repayable at par 19 at the town
hall Tunbridge Wells.

This is to certify that of
is the registered holder of a Corporation bond
for pounds (£) issued by the
mayor aldermen and burgesses of the borough of Tunbridge
Wells under the Tunbridge Wells Corporation Act 1929
at

Signed

Registrar.

Date

7. The certificate shall be *primâ facie* evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

A.D. 1929.
—

8.—(1) The transfer of a Corporation bond shall be by deed in the following form or in a form substantially to the like effect :—

FORM OF DEED OF TRANSFER.

Tunbridge Wells Corporation Bonds.

I

in consideration of the sum of
paid by

(hereinafter called “the transferee”) do hereby assign and
transfer to the said transferee

To hold unto the transferee his executors
administrators and assigns subject to the several conditions
on which I held the same immediately before the execution
hereof and I the said transferee do hereby agree to accept
and take the said subject to the
conditions aforesaid.

As witness our hands and seals this day of
in the year of our Lord one thousand nine
hundred and

(2) A bond may be transferred in whole or in part so how-
ever that any part transferred shall not be for an amount other
than an amount for which a bond may be issued by the
Corporation.

(3) The deed of transfer shall be delivered to and retained
by the Corporation and the Corporation shall enter a note thereof
in a book to be called the “Register of transfers of Tunbridge
Wells Corporation bonds” and shall endorse on the deed of
transfer a notice of that entry.

(4) The Corporation shall upon receipt of the deed of transfer
duly executed and properly stamped together with the certificate
issued in respect of the bond enter the name of the transferee in
the register and shall issue a new certificate or certificates to the
transferee or to the transferor and transferee as the case may
require.

(5) Until the deed of transfer and the certificate have been
delivered to the Corporation as aforesaid the Corporation shall
not be affected by the transfer and the transferee shall not be
entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond
may if they think fit require evidence by statutory declaration
or otherwise of the title of any person claiming to make the
transfer.

9. The Corporation may close the register for a period not
exceeding thirty days immediately before the thirty-first day of

March and the thirtieth day of September in any year respectively and notwithstanding the receipt by the Corporation during those periods of any deed of transfer the half-yearly payment of interest next falling due may be made to the persons registered as holders of bonds on the date of the closing of the register. A.D. 1929.

10.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Corporation may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation the Corporation shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

11.—(1) Unless the holder of a bond otherwise requests the Corporation may pay the interest thereon by posting a warrant to the holder at his address as shown in the register.

(2) The posting by the Corporation of a letter containing an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Corporation be equivalent to the delivery of the warrant to the holder himself.

12. The Corporation shall not be required to pay any executors or administrators any interest on bonds held by their testator or intestate until the probate of the will or the letters of administration has or have been left with the Corporation for registration.

13. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

14. Where more persons than one are registered as joint holders of a bond any one of them may give an effectual receipt for any interest thereon unless notice to the contrary has been given to the Corporation by any other of them.

15. No notice of any trust shall be entered in the register or in any other book kept by the Corporation or be receivable by the Corporation.

16.—(1) If at any time any interest due on any bonds remains unpaid for two months after demand in writing the persons

A.D. 1929. entitled thereto may apply to the High Court for the appointment of a receiver and the Court may if it thinks fit appoint a receiver on such terms as it thinks fit.

(2) The receiver shall have the like power of collecting receiving recovering and applying moneys and of assessing making and recovering all rates for the purpose of obtaining the same as the Corporation or any other officer thereof would or might have and such other powers and duties as the Court thinks fit and shall apply all moneys so collected and received after paying all such costs as the Court may direct for the purposes of this Act.

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF TUNBRIDGE WELLS.

By virtue of the Tunbridge Wells Corporation Act 1929 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Tunbridge Wells (hereinafter referred to as "the Corporation") in consideration of the sum of _____ pounds (hereinafter referred to as "the principal sum") paid to the treasurer of the borough by _____ (hereinafter referred to as "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the principal sum doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the principal sum shall be fully paid and satisfied with interest for the same (subject as hereinafter provided) at the rate of _____ per centum per annum from the _____ day of _____ nineteen hundred and _____ until payment of the principal sum such interest to be paid half-yearly on the _____ day of _____ and the _____ day of _____ in each year And it is hereby agreed that the principal sum shall be repaid at the town

hall in the said borough [(subject as hereinafter provided) on the day of nineteen hundred and or (if not repaid on that date) at any time thereafter on the expiration of six calendar months' notice in writing by the Corporation to the mortgagee or by the mortgagee to the Corporation] [by]: A.D. 1929.

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be agreed upon between the Corporation and the mortgagee and mentioned in an endorsement to be made hereon under the hand of the town clerk for the time being and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their corporate seal to be hereunto affixed this day of nineteen hundred and

THE ENDORSEMENT WITHIN REFERRED TO.

The within-named
consenting the within-mentioned time for repayment of the within-mentioned principal sum of

is hereby extended to the
day of nineteen hundred and
[and the interest to be paid thereon on and
from the day of
nineteen hundred and is hereby declared
to be at the rate of per centum per annum].

Dated this day of
nineteen hundred and

FORM OF TRANSFER OF MORTGAGE.

I [the within-named]
of in consideration of the sum of
pounds paid to me by
of
(hereinafter referred to as "the transferee") do hereby transfer
to the transferee [his] executors administrators and assigns [the
within-written security] [the mortgage number
of the revenues of the mayor aldermen and
burgesses of the borough of Tunbridge Wells bearing date the
day of] and all my

[Ch. xci.] *Tunbridge Wells* [19 & 20 GEO. 5.]
Corporation Act, 1929.

Tunbridge Wells [19 & 20 GEO. 5.]
Corporation Act, 1929.

A.D. 1929. right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this _____ day of _____
nineteen hundred and _____

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